Website terms of use

This website ("**Site**") is owned and operated by Pryde's EasiFeed Pty Ltd, together with its associated entities and complementary businesses (collectively "**Pryde's**", "**we**", "**us**" and "**ours**").

To contact us, please email info@prydes.com.au or telephone us on 1300 732 267.

By using our Site, you agree to comply with these terms of use. Please check this page each time you use our Site, as we may update these terms from time to time. If we make material changes to these terms, we will post them to this Site with 30 days' prior notice of the intended change, unless the changes are to respond to legal requirements.

These terms of use include terms that limit our liability to you and should be read with our Privacy Policy which permits us to disclose your personal information to third parties in certain circumstances.

Your obligations

You must comply with any instructions we give you about how to use our Site and must not do anything that interferes with or adversely affects the normal operation of the Site (including the ability of other users to access or use the Site).

You are responsible for ensuring the security of the systems and devices that you use to access our Site, including through use of appropriate virus-checking and other security software.

You may use the Site only for lawful purposes and in accordance with these terms. You agree not to use the Site:

- in any way that violates any applicable federal, state, local or international law or regulation (including, without limitation, any laws regarding the export of data or software to and from other countries);
- for the purpose of exploiting, harming or attempting to exploit or harm minors in any way by exposing them to inappropriate content, asking for personally identifiable information or otherwise;
- to impersonate or attempt to impersonate us, any of our employees, another user or any other person or entity (including, without limitation, by using email addresses associated with any of the foregoing); or
- to engage in any other conduct that restricts or inhibits anyone's use or enjoyment of the Site, or which, as determined by us, may harm us or users of the Site or expose them to liability.

Additionally, you agree not to:

- use the Site in any manner that could disable, overburden, damage, or impair the Site or interfere with any other party's use of the Site, including their ability to engage in real time activities through the Site;
- use any robot, spider or other automatic device, process or means to access the Site for any purpose, including monitoring or copying any of the material on the Site;
- use any manual process to monitor or copy any of the material on the Site or for any other unauthorised purpose without our prior written consent;

- use any automatic or manual process to reverse engineer or decompile any part of the Site;
- use any device, software or routine that interferes with the proper working of the Site;
- introduce any viruses, trojan horses, worms, logic bombs, spyware, computer code, file, program or material which is malicious or technologically harmful;
- attempt to gain unauthorised access to, interfere with, damage or disrupt any parts of the Site, the server on which the Site is stored, or any server, computer or database connected to the Site;
- attack the Site via a denial-of-service attack or a distributed denial-of-service attack; or
- otherwise attempt to interfere with the proper working of the Site.

In the event of such a breach, your right to use our Site will cease immediately.

Rights to suspend or terminate access

We may suspend, terminate or block your access to all or any part of our Site at any time, acting reasonably. This Site may be unavailable from time to time, without prior notice, in the event of technical difficulties or for the purpose of routine maintenance.

Intellectual property

All of the intellectual property rights in and to our Site, including any of our trade marks displayed on our Site, belong to us and our licensors. We may update and change the materials available on our Site, including by removing materials, at any time in our discretion.

With the exception of permitted use under the *Copyright Act 1968* (Cth) and permitted uses below, all other uses of material on the Pryde's Site are explicitly prohibited unless prior written consent is obtained from Pryde's.

You are welcome to:

- reproduce for non-commercial use any material displayed on this Site of which Pryde's is the copyright owner;
- reproduce small extracts of material on this Site provided the source of such material is appropriately acknowledged;
- link to this Site, or any part of it, except where such link suggests the information was provided by a third party or suggests an endorsement of a product or service by Pryde's.

To the extent that third party content appears on the Pryde's Site, copyright vests in that third party. Pryde's cannot and does not grant any permission in respect of use of material owned by a third party.

Please reach out to info@prydes.com.au for further information concerning this copyright notice or to obtain written consent to use Pryde's materials displayed on this Site.

Linking to our Site

You may link to our home page, provided you do so in a way that is fair and legal and does not damage our reputation or take advantage of it.

You must not establish a link in such a way as to suggest any form of association, approval or endorsement on our part where none exists.

Our Site must not be framed or mirrored on any other Site, nor may you create a link to any part of our Site other than the home page.

We reserve the right to withdraw linking permission without notice.

If you wish to link to or make any use of content on our Site other than that set out above, please contact info@prydes.com.au.

Site links

Our Site may contain links to other websites operated by third parties who are not associated with us. These links are provided for your information only. We have no control over those websites or the services made available through them, and accept no responsibility for them or for any loss or damage that may arise from your use of them.

Liability

While we will use reasonable care and skill in operating our Site, we cannot promise that our Site will always be available or completely free of faults or errors.

To the maximum extent permitted by law, except as expressly set out in these terms of use, we exclude:

- all conditions, representations and warranties, whether express or implied, in relation to our Site; and
- any liability (whether in contract, tort (including negligence), or otherwise) for any indirect or consequential loss, damage or expense incurred by you or any other user in connection with our Site.

To the extent we are unable by law to exclude any implied condition, representation or warranty in relation to the provision of goods or services through our Site, we limit our liability for a breach to the re-supply of those goods or services, or payment for such re-supply.

Nothing in these terms of use restricts, excludes, modifies or purports to restrict, exclude or modify any statutory consumer rights under any applicable law, including *the Competition and Consumer Act 2010* (Cth).

Indemnity

You agree to defend, indemnify and hold us, our affiliates, licensors and service providers, and each of their respective officers, directors, employees, contractors, agents, licensors, suppliers, successors and assigns, harmless from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses or fees (including reasonable attorneys' fees) arising out of or relating to your

violation of these terms or your use of the Site, including, but not limited your use of any information obtained from the Site and any use of the Site's content, services and products other than as expressly authorised in these terms.

Different limitations and exclusions of liability will apply to liability arising as a result of the supply of any products to you, which are set out in our terms of sale.

Disclaimer

THIS SITE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, AND TO THE EXTENT PERMITTED BY LAW WE MAKE NO REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, REGARDING THE OPERATION OR AVAILABILITY OF THE SITE.

THE CONTENT ON OUR SITE IS PROVIDED FOR GENERAL INFORMATION ONLY. IT IS NOT INTENDED TO AMOUNT TO ADVICE ON WHICH YOU SHOULD RELY.

ALTHOUGH WE MAKE REASONABLE EFFORTS TO UPDATE THE INFORMATION ON OUR SITE, WE MAKE NO REPRESENTATIONS, WARRANTIES OR GUARANTEES, WHETHER EXPRESS OR IMPLIED, THAT THE CONTENT ON OUR SITE IS ACCURATE, COMPLETE OR UP TO DATE.

Governing law

These terms of use are governed by the laws in force in New South Wales, Australia and will be subject to the non-exclusive jurisdiction of the courts in that place.

These terms of use were last updated on 27 June 2024.